

¶¶ 9-15.) Defendant proposes a \$550 hourly rate. Based on the court's experience and the evidence submitted, the requested \$625 rate appears somewhat excessive for this matter. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [court may rely on its own experience in determining reasonable rates and hours].) Specifically, this court has previously granted a reasonable hourly rate of attorney Hoddick at \$550. This rate reasonably accounts for counsel's experience and specialized practice.

Defendant also challenges several billing entries as templated, excessive, administrative/clerical, or duplicative. These entries concern the time for Plaintiff's initial consultation and review of repair documents, preparation of the complaint and initial disclosures, review of Defendant's disclosures, and drafting of the case management statement. These tasks required case-specific attorney judgment. The fact that counsel used templates does not establish that the work was unreasonable.
DECLINED.

Plaintiff's billing records, however, include 3.4 hours (\$2,125.00) of anticipated work related to this fee motion and hearing. Civ. Code §1794(d) allows for *actual* time expended. Although Plaintiff filed a reply, counsel did not submit supplemental declaration documenting the actual time spent on it. The court will allow 1 hour for the reply and 0.5 hour for hearing preparation and appearance, but disallow the remaining anticipated time.

In sum, the court allows 20.3 hours of actual attorney time, plus 1.5 hours for the reply/hearing, for a total of 21.8 hours. At the adjusted rate of \$550 per hour, the resulting lodestar is \$11,990.

Costs

Civ. Code §1794(d) permits the court to award reasonably incurred costs and expenses. The Legislature intended the use of "costs and expenses" to include items excluded under CCP §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) Plaintiff did *not* file a cost memorandum, but identified \$1,425.50 in claimed costs. (Hoddick Decl., ¶ 6.) Defendant challenges that the \$600 mediation charge covered a 1.5-hour mediation session involved *two* separate cases. In his reply, Plaintiff concedes that only half (or \$300) of the mediation charge should be allocated to this action, and half will go to the other case mediated the same day. \$1,425.50 less the conceded \$300 reduction equals \$1,125.50. These costs appear reasonably incurred.

As such, the court awards \$1,125.50 in costs.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504342	CISNEROS VS FIDELITY NATIONAL TITLE COMPANY	MOTION TO STRIKE COMPLAINT OF CARLOS S. CISNEROS BY FIDELITY NATIONAL TITLE COMPANY

Tentative Ruling: Sustained.

No opposition filed.

Operative complaint was filed by Plaintiff on July 7, 2025 seeking cancellation of Trustee sale and deed of subject property on December 11, 2024 along with quieting title.

In the instant motion, Defendant Fidelity National Title Company demurrers to all causes of action in the operative complaint.

The court's review of the complaint and moving papers leads the court to conclude that Plaintiff has not plead any actionable cause as to the *instant* defendant, Fidelity National Title Company who was the foreclosure trustee without any further involvement such as the mortgage holder and/or authorized agent for such.

Unless Plaintiff can specify how leave to amend can cure this deficiency, the court must sustain without leave to amend.

Moving party to provide notice pursuant to CCP 1019.5.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2504342	CISNEROS VS FIDELITY NATIONAL TITLE COMPANY	DEMURRER ON COMPLAINT OF CARLOS S. CISNEROS BY FIDELITY NATIONAL TITLE COMPANY

Tentative Ruling: Moot as result of court ruling on accompanying demurrer.

Moving party to provide notice pursuant to CCP 1019.5.